

Chapter 5 was amended by [Local Law 77 of 2023](#). This law has an effective date of June 10, 2023.

CHAPTER 5

MISCELLANEOUS PROVISIONS

ARTICLE 501

MAINTENANCE PERMIT FOR OUTDOOR SIGNS

§28-501.1 Permit required. The commissioner may, in his or her discretion, when necessary in the public interest, establish a permit requirement for signs maintained in the areas described in this article in accordance with the provisions of this article and the rules of the department. On and after a date to be provided by the rules establishing such a permit requirement, and subject to the provisions of section 28-501.6 of this code, it shall be unlawful to place or maintain a sign, as defined in section 12-10 of the zoning resolution, on any building or premises unless a permit for the maintenance of such sign has been issued by the department pursuant to this article if such sign is within a distance of 900 linear feet (274 m) from and within view of an arterial highway or within a distance of 200 linear feet (60 960 mm) from and within view of a public park with an area of one half acre or more.

§28-501.1.1 Other permits notwithstanding. Where a sign maintenance permit has been established by the commissioner pursuant to section 28-501.1 such permit shall be required for all signs maintained in the areas described in such section 28-501.1 and not otherwise excluded under section 28-501.6, whether or not a work permit is required and/or has been issued for the installation, alteration or erection of such sign pursuant to chapter 1 of this title.

§28-501.1.2 Arterial highway. For the purposes of this article, the term arterial highway shall include all highways that are shown on the master plan of arterial highways and major streets as principal routes, parkways or toll crossings and that have been designated by the city planning commission as arterial highways to which the provisions of sections 42-55 and 32-66 of the zoning resolution shall apply as shown in appendix H “Designation of Arterial Highways” of the zoning resolution.

§28-501.2 Application. Application for a permit or for the renewal of a permit shall be made on forms to be furnished by the department and shall contain such information as the department shall prescribe. Except as otherwise provided in section 28-501.3, a permit shall remain in effect for a period to be determined by rule and may be renewed. The fee for a permit or for its renewal shall be established by rule. The identification number of the permit shall be displayed on the sign or on the building or premises on which the sign is located or both, in a manner to be provided by rule.

§28-501.3 Permit expiration. A permit issued pursuant to this article shall expire and be of no further force or effect where:

1. In the case of a sign which is accessory to a principal use within the meaning of section 12-10 of the zoning resolution, there has been a discontinuance of the operation of the principal use to which such sign is accessory, or in the event the sign is no longer in the same ownership as such principal use or is no longer operated and maintained substantially for the benefit or convenience of the owners, occupants, employees, customers or visitors of the principal use;
2. In the case of any sign for which a permit has been issued pursuant to this article, whether or not accessory to a principal use within the meaning of section 12-10 of the zoning resolution, there has been a change in copy which the commissioner has determined renders such sign no longer in compliance with the zoning resolution. The commissioner shall prescribe by rule procedures for the notification to the department concerning changes in copy which have been made on signs for which permits have been issued under this article. Nothing herein shall be construed as limiting the ability of any person to apply for a new permit pursuant to this article.

§28-501.4 Civil penalties. Any person who places or maintains a sign on a building or premises without an appropriate permit in violation of this article shall be liable for a civil penalty of, for a first violation, not more than fifteen

MISCELLANEOUS PROVISIONS

thousand dollars and, for a second or subsequent violation, not more than twenty-five thousand dollars. Each day's continuance shall be a separate and distinct violation. Such civil penalties may be recovered in an action in any court of appropriate jurisdiction or in a proceeding before the environmental control board. Such board shall have the power to impose the civil penalties provided for in this article. Notwithstanding the provisions of section six hundred sixty-six of the charter, a notice of violation issued by the department pursuant to this section 28-501.4 shall not be subject to review by the board of standards and appeals.

§28-501.5 Construction. This chapter shall not be construed to grant the right to place or maintain a sign on any building or premises where the placement or maintenance of such sign would otherwise be prohibited pursuant to the zoning resolution, the administrative code or any other provision of law. No permit for a sign issued hereunder shall be deemed to constitute permission or authorization to maintain a sign which is unlawful pursuant to any other provisions of law nor shall any permit issued hereunder constitute a defense in an action or proceeding with respect to such an unlawful sign.

§28-501.6 Exemption. The provisions of this article shall not apply to:

1. Signs with a surface area of 200 square feet (19 m²) or less that are located no higher than 3 feet (914 mm) above the floor of the second story of the building on which the sign is located; and
2. Signs under the control of an outdoor advertising company and included on a certified list of signs, sign structures, and sign locations under the control of such company required to be filed with the department pursuant to this chapter.

ARTICLE 502 OUTDOOR ADVERTISING COMPANIES

§28-502.1 Definitions. As used in this chapter, the following terms shall have the following meanings:

AFFILIATE. An outdoor advertising company having a controlling interest in another outdoor advertising company or in which such other outdoor advertising company has a controlling interest. In addition, where a person or entity has control-ling interests in two or more outdoor advertising companies, such outdoor advertising companies shall be considered affiliates of each other. A "controlling interest" means actual working control, in whatever manner exercised, including without limitation, control through ownership, management, debt instruments or negative control, as the case may be, as defined in rules of the department.

OUTDOOR ADVERTISING BUSINESS. The business of selling, leasing, marketing, managing, or otherwise either directly or indirectly making space on signs situated on buildings and premises within the city of New York available to others for advertising purposes, whether such advertising directs attention to a business, profession, commodity, service or entertainment conducted, sold, or offered on the same or a different zoning lot and whether such sign is classified as an advertising sign pursuant to section 12-10 of the zoning resolution.

+++ OUTDOOR ADVERTISING COMPANY. A person, corporation, partnership or other business entity that as a part of the regular conduct of its business engages in or, by way of advertising, promotions or other methods, holds itself out as engaging in the outdoor advertising business.

SIGN. A sign as defined in section 12-10 of the zoning resolution except that such term shall not include any sign subject to regulation by the department of transportation.

SIGN LOCATION. A building or premises on which an out-door advertising company is entitled to sell, lease, market, manage or otherwise either directly or indirectly make space on signs available to customers, irrespective of whether a sign exists on such building or premises.

UNDER THE CONTROL OF AN OUTDOOR ADVERTISING COMPANY in reference to a sign, sign structure, or sign location. That space on such sign, sign structure, or at such sign location that is sold, leased, marketed, managed or otherwise either directly or indirectly made available to others for any purposes by such outdoor advertising company.

§28-502.2 Registration of outdoor advertising companies. On and after a date to be provided by rule, it shall be unlawful for an outdoor advertising company to engage in the outdoor advertising business or, by way of advertising, promotions or other methods, hold itself out as engaging in the outdoor advertising business unless such company is

registered in accordance with this code and the rules of the department. Such rules shall establish a procedure pursuant to which the department may require the single registration of an outdoor advertising company and its affiliates. An outdoor advertising company and its affiliates made subject to single registration shall be considered a single outdoor advertising company for purposes of this code.

§28-502.2.1 Application. Application for registration or the renewal of registration shall be made on forms to be furnished by the department, may be made through electronic means, and shall contain such information as the department shall prescribe. Registration shall remain in force for two years and may be renewed. The fee for such registration and for the renewal of such registration shall be established by rule and may be based on the number of signs in the registered inventory.

§28-502.2.2 Security. Each outdoor advertising company shall post a bond or provide another form of security to the city in an amount to be determined by the department by rule to cover:

1. All costs incurred by the city pursuant to this code for painting over, covering, rendering ineffective or for the removal and storage of an illegal sign or sign structure under the control of such outdoor advertising company; and
2. All fines or civil penalties imposed against such company pursuant to this chapter.

§28-502.3 Revocation or suspension of registration. The department may revoke, suspend or refuse to renew the registration of an outdoor advertising company or impose fines or other penalties where it is determined by the commissioner, after notice and the opportunity to be heard, that (i) such company has made statements that it knew or should have known are false in any application or certification filed with the department, (ii) such company has failed to comply with section 28-502.4 of this code or the rules adopted pursuant to its provisions by failing to file a listing of signs, sign structures and sign locations under its control as specified in such section within the time and in the manner required by department rules or by filing an incomplete listing of signs, sign structures and sign locations under its control as specified in such section, (iii) such company has been found liable for or has admitted to violations of the zoning resolution under section 28-502.6 of this code committed on three or more occasions within a 36 month period, where such violations relate to the erection, maintenance, attachment, affixing, painting or representation in any other manner on a building or premises of advertising signs, as defined in section 12-10 of the zoning resolution, at locations where the display of such advertising signs is not permitted under the zoning resolution or at locations where the display of such advertising signs violates the size, height, or illumination provisions of the zoning resolution, and such signs are located within a distance of nine hundred linear feet from and within view of an arterial highway or within 200 linear feet (60 960 mm) from and within view of a public park with an area of one half acre or more, (iv) such company has failed to pay any civil penalties imposed or amounts owed to the city pursuant to section 28-502.6 of this code or article 503 of this chapter or, (v) such company has violated the department's rules pertaining to outdoor advertising companies. No application for registration by an outdoor advertising company or any affiliate thereof shall be accepted for filing by the department for a period of five years after revocation of or the refusal to renew the registration of such outdoor advertising company pursuant to this code. The department shall not accept or process any applications for permits to install, erect or alter signs pursuant to this code or for the maintenance of signs pursuant to section 28-501.1 of this code where such applications are filed by or where such signs are under the control of an outdoor advertising company or any affiliate thereof after the registration of such outdoor advertising company has been revoked or not renewed or during the term of any period of suspension of such registration. The commissioner may settle any proceeding in which the revocation, suspension or renewal of an outdoor advertising company's registration is at issue upon such terms and conditions as he or she may deem appropriate including but not limited to the agreement of an outdoor advertising company to remove signs along with supporting sign structures as a condition for the dismissal of such proceeding.

§28-502.4 Reporting requirement. An outdoor advertising company shall provide the department with a list with the location of signs, sign structures and sign locations under the control of such outdoor advertising company in accordance with the following provisions:

1. The list shall include all signs, sign structures and sign locations located (i) within a distance of 900 linear feet (274 m) from and within view of an arterial highway; or (ii) within a distance of 200 linear feet (60 960 mm) from and within view of a public park with an area of $\frac{1}{2}$ acre (2023 m²) or more.
2. The commissioner may, by rule, expand the scope of such list to include the reporting of other signs, sign structures and sign locations, as specified in such rule.

MISCELLANEOUS PROVISIONS

§28-502.4.1 Form of list. The list shall be in such form, containing such information and filed at such periodic intervals or upon such other conditions, as the department shall prescribe by rule.

§28-502.4.2 Other required information. Such list shall also indicate the work permit identification numbers for the erection, alteration or installation of such signs pursuant to chapter 1 of this title and for the maintenance of such signs pursuant to article 501, unless a permit is not required pursuant to such provisions, as well as the name and license number of the master or special sign hanger who hung or erected each such sign.

§28-502.4.3 Certification of list. Such list shall be accompanied by (i) a certification by an architect or engineer, co-signed by a responsible officer of the outdoor advertising company, that all signs reported on such list are in compliance with the zoning resolution; (ii) copies of proof that the sign complies with the zoning resolution and a certification by the sign's owner that to the best of the certifier's knowledge and belief the information provided is accurate, or (iii) a written opinion by the department, stating that the sign to which the opinion refers complies with the zoning resolution. Notwithstanding any inconsistent provision of this code, where, in accordance with the department's rules, the department renders an opinion, determination or decision relating to whether a sign is nonconforming or whether it is located in proximity to an arterial highway as defined by the zoning resolution, such decision, determination or opinion will be appealable to the board of standards and appeals in accordance with applicable law. If a timely appeal to such board is taken, the department shall not issue a notice of violation with respect to such sign pending a determination of such appeal by such board.

§28-502.4.4 Public access to list. The commissioner shall make all listings filed pursuant to this article accessible to the public.

§28-502.5 Display of name and registration number of outdoor advertising company. On and after a date to be pre-scribed by rule, the commissioner shall require that each outdoor advertising company display, in a manner to be pro-vided by rule, on each sign under its control or on the building or premises where each sign under its control is located or both, (i) the name and registration number of such company and, (ii) unless a permit is not required, the work permit identification number for the installation, alteration or erection of the sign pursuant to chapter 1 of this code and, if applicable, for the maintenance of the sign pursuant to article 501.

§28-502.6 Criminal and civil penalties. Outdoor advertising companies that violate the zoning resolution, this code, the 1968 building code or rules of the department shall be subject to criminal and civil penalties in accordance with this article.

§28-502.6.1 General. Notwithstanding any other provision of law, an outdoor advertising company shall be liable for a civil penalty in accordance with this article if a sign under its control has been erected, maintained, attached, affixed, painted on, or in any other manner represented on a building or premises in violation of any provision of the zoning resolution, this code, the 1968 building code or rules adopted pursuant thereto relating to signs.

§28-502.6.2 Unlawful for outdoor advertising company to sell space on illegal sign. It shall be unlawful for an out-door advertising company to sell, lease, market, manage or otherwise make available to others for advertising purposes space on a sign that has been erected, maintained, attached, affixed, painted on or in any other manner represented on a building or premises in violation of any provision of the zoning resolution, this code, the 1968 building code or rules adopted pursuant thereto or to enter into any agreement for such purpose.

§28-502.6.3 Unlawful to transfer sign to unregistered outdoor advertising company. On and after a date to be provided by rule, it shall be unlawful for an outdoor advertising company to sell or otherwise transfer control of a sign or sign location or of any right of such company to sell, lease, market, manage or otherwise make space on a sign or at a sign location available to others for advertising purposes to an outdoor advertising company that is not registered in accordance with this article and the rules of the department.

§28-502.6.4 Civil penalty. An outdoor advertising company that violates any of the provisions of this article shall be subject to a civil penalty of, for a first violation, not more than fifteen thousand dollars and, for a second or subsequent violation, not more than twenty-five thousand dollars. Each day's continuance shall be a separate and distinct violation.

§28-502.6.5 Criminal penalty. Notwithstanding any inconsistent provision of law, an outdoor advertising company shall, upon being found guilty, be subject to fines or imprisonment or both pursuant to this code if a sign under its control has been erected, maintained, attached, affixed, painted on, or in any other manner represented

on a building or premises in violation of any provision of the zoning resolution, this code, the 1968 building code or rules adopted pursuant thereto relating to signs.

§28-502.6.6 Activity by unregistered company. On and after a date to be provided by rule, an outdoor advertising company that engages in the outdoor advertising business or, by way of advertisement, promotion or other methods holds itself out as engaging in the outdoor advertising business without registering with the department pursuant to this chapter, or, after such registration has been revoked or not renewed pursuant to this code continues to engage in such business beyond a date specified by the commissioner in his or her determination to revoke or not renew, shall be guilty of a misdemeanor subject to a fine not to exceed five thousand dollars or a sentence of imprisonment of not more than one year or both such fine and imprisonment for each offense. In the case of a continuing violation each day's continuance shall be a separate and distinct violation. Such company shall also be liable for a civil penalty of, for a first violation, not more than fifteen thousand dollars and, for a second or subsequent violation, not more than twenty-five thousand dollars. Each day's continuance shall be a separate and distinct violation.

§28-502.6.7 Venue. Civil penalties may be recovered in an action in any court of appropriate jurisdiction or in a proceeding before the environmental control board. Such board shall have the power to impose the civil penalties provided for in this article. Notwithstanding the provisions of section six hundred sixty-six of the charter, a notice of violation issued by the department pursuant to this article shall not be subject to review by the board of standards and appeals.

§28-502.7 Signs under control of unregistered outdoor advertising company are public nuisance. On and after a date to be provided by rule, it shall be unlawful to erect, maintain, attach, affix, paint on, or in any other manner represent on a building or premises any sign that is under the control of an unregistered outdoor advertising company. In addition to or as an alternative to any other remedies or penalties provided under any other provision of law, the commissioner may commence a proceeding for the removal of such sign or its sign structure or both in accordance with the procedures set forth in this code for the abatement of a nuisance and any such sign and its sign structure is hereby declared to be a public nuisance pursuant thereto. All of the provisions of article 503 of this chapter shall apply to the removal of a sign pursuant to this article except that a sign under the control of an unregistered outdoor advertising company may be removed whether or not it is in compliance with the zoning resolution, this code, the 1968 building code or rules adopted pursuant thereto, and irrespective of whether it has a surface area greater than 200 square feet (19 m²).

§28-502.8 Franchise or concession disqualification. Notwithstanding any other provision of law to the contrary, an out-door advertising company, or any affiliate thereof, that has been found guilty of a misdemeanor or liable for a civil penalty pursuant to this article or whose registration has been revoked shall be considered ineligible for the award of any city franchise or concession, and shall be prohibited from administering any advertising program on behalf of a city franchisee or concessionaire, for a period of five years following judgment or decision.

§28-502.9 Investigations. The department may investigate any matter within the jurisdiction conferred by this chapter and shall have full power to compel the attendance, examine and take testimony under oath of such persons as it may deem necessary in relation to such investigation, and to require the production of books, accounts, papers and other evidence relevant to such investigation. The department of investigation may, at the request of the commissioner, assist the department in any investigation conducted pursuant to this article.

ARTICLE 503 NUISANCE ABATEMENT FOR ILLEGAL SIGNS

§28-503.1 General. A sign with a surface area greater than 200 square feet (19 m²) that is erected, maintained, attached, affixed, painted on, or in any other manner represented on a building or premises in violation of the zoning resolution, this code, the 1968 building code or rules adopted pursuant thereto is hereby declared to be a public nuisance. The commissioner may, after notice and hearing, order the removal of such illegal sign or its sign structure or both, as hereinafter provided.

§28-503.2 Notice. The commissioner shall serve a notice of hearing with regard to the proposed nuisance abatement on the owner and mortgagee of record of the building or premises and other persons having a recorded interest in the property in the manner provided in article 212 of chapter 2 of this title for the service of an order of closure. If the sign is under the control of an outdoor advertising company and an address for such company is reasonably

MISCELLANEOUS PROVISIONS

ascertainable, the notice shall also be served on such outdoor advertising company by mail to the last known address for such company or, if such company is registered in accordance with section 28-502.2, at the address provided to the department by the registrant.

§28-503.3 Hearing. The office of administrative trials and hearings shall conduct the hearing. The administrative law judge assigned to hear the matter shall submit his or her pro-posed findings of fact and recommended disposition to the commissioner. If based on such recommended disposition, proposed findings of fact and the record of the hearing the commissioner determines (i) that the sign has a surface area greater than 200 square feet (19 m²) and, (ii) that the sign has been erected, maintained, attached, affixed, painted on, or in any other manner represented on the building or premises in violation of the zoning resolution, this code, the 1968 building code or rules adopted pursuant thereto, he or she may order the removal of the illegal sign or its sign structure or both.

§28-503.3.1 Lack of knowledge no defense. At such hearing it shall not be a defense that an owner or other person having an interest in the property lacked knowledge of or did not participate in the erection or maintenance of the illegal sign.

§28-503.4 Posting of order. The commissioner's order of removal shall be posted, mailed and filed in the manner provided in this code for an order of closure.

§28-503.5 Enforcement of order. On or after the tenth business day after the posting of such order and upon the written directive of the commissioner, police officers and authorized representatives of the department shall act upon and enforce such order by removing, covering, painting over or otherwise rendering ineffective the illegal sign or its sign structure or both. Such work shall at all times be performed by a licensed sign hanger where required by law. Nothing in this article shall be construed to prohibit an owner or other person having an interest in the property from removing or causing the removal of an illegal sign or its sign structure prior to the arrival of such enforcement officers. On and after the posting of such removal order, no further permits for signs shall be issued for such building or premises pursuant to this code and, if the sign structure is not removed, no further display shall be exhibited on such sign structure unless and until the commissioner rescinds such order.

§28-503.6 Rescission of order. The commissioner may rescind the order if the owner or other person having an interest in the building or premises provides assurance in a form satisfactory to the commissioner that all signs erected or maintained at such building or premises will be in compliance with the zoning resolution, this code, the 1968 building code or rules adopted pursuant to such provisions. If such order is rescinded, the commissioner shall, upon request of such owner, mortgagee or other person, provide a certified copy of such rescission which may be filed with the county clerk or register of the county in which such building or premises is located.

§28-503.7 Costs. The costs and expenses for painting over, covering, rendering ineffective or for the removal and storage of such sign and its sign structure may be recovered from the owner of the premises or, if the illegal sign is under the control of an outdoor advertising company and notice was served on such company in accordance with this article, from such out-door advertising company. Such amounts may be recovered by the city in an action or proceeding in any court of appropriate jurisdiction and, with respect to amounts owed by an outdoor advertising company, by drawing upon any bond posted or other security provided by such company pursuant to section 28-502.2. Nothing in this article shall be construed to limit the ability of an owner to seek recovery of such costs and expenses from any other party.

§28-503.8 Lien. In addition, such costs and expenses shall constitute a lien on the land and building on which the sign was located which may be entered and enforced pursuant to the provisions of this code in the same manner as an unpaid fee.

§28-503.9 Storage and disposal. The commissioner shall adopt rules to provide for the storage and disposal of any sign or sign structure removed pursuant to this article. If the identity and address of the owner of such property is reasonably ascertainable, notice of the removal shall be sent to the owner within a reasonable period of time after the removal. If such property is not claimed within thirty days after its removal, it shall be deemed to be abandoned and may be sold at a public auction after having been advertised in the City Record and the proceeds paid into the general fund or if the commissioner determines that the property is not saleable, he or she may turn over such property to the department of sanitation for disposal. Property removed pursuant to this article shall be released to the owner or other person lawfully entitled to possession upon payment of the costs of removal and storage as set forth in the rules of the department and any fines or civil penalties imposed for the violation or, if an action or proceeding for the violation is pending in court or before the environmental control board, upon the posting of a

bond or other form of security acceptable to the department in an amount which will secure the payment of such costs and any fines or civil penalties which may be imposed for the violation.

§28-503.10 Definitions. For the purposes of this article the terms “sign” and “surface area,” in reference to a sign, shall be as defined under section 12-10 of the zoning resolution.

§28-503.11 Review of order. An order of the commissioner issued pursuant to this article shall be a final determination of the commissioner for purposes of review pursuant to article seventy-eight of the civil practice law and rules. Notwithstanding any inconsistent provision of paragraph (a) of subdivision six of section six hundred sixty-six of the New York city charter, such order shall not be subject to review by the board of standards and appeals.

ARTICLE 504 BICYCLE ACCESS TO BUILDINGS

§28-504.1 Bicycle access to certain office buildings. This section shall apply to buildings that satisfy each of the following conditions: (i) the main occupancy of such building is offices that are classified as occupancy group B, (ii) such building was in existence on December 11, 2009, or a permit for such building has been issued on or before such date but such building has not yet been completed, (iii) such building has a freight elevator that either complies with ASME A17.1 with regard to the carrying of passengers on freight elevators, as referenced in chapter 35 of the New York city building code, or is operated by a freight elevator operator, and (iv) is not subject to the bicycle parking provisions of sections 25-80, 36-70 and 44-60 of the New York city zoning resolution. It shall be presumed that if a freight elevator is available for carrying freight, it is available for carrying bicycles.

§28-504.1.1 Request for bicycle access. The tenant or subtenant of a building to which this section is applicable may request in writing, on a form provided by the department of transportation, that the owner of such building complete a bicycle access plan in accordance with section 28-504.1.2 and provide bicycle access in accordance with such plan. Such request shall include a certification by such tenant or subtenant that there is sufficient space within such tenant’s or subtenant’s premises to store the requested number of bicycles in a manner that does not violate the building or fire code or any other applicable law, rule or code, or which would impede ingress or egress to such premises or building. Such request shall be sent to such owner by certified mail, return receipt requested, and a copy of the request shall be filed with the department of transportation.

§28-504.1.2 Bicycle access plan. Bicycle access plans shall comply with sections 28-504.1.2.1 through 28-504.1.2.4.

§28-504.1.2.1 Owner requirement. Where a request for a bicycle access plan has been submitted pursuant to this section, the owner of such building shall, within 30 days after receipt of such request, complete and implement a bicycle access plan or provide to the tenant or subtenant a copy of the request for an exception that has been filed with the department of transportation in accordance with section 28-504.1.3.

§28-504.1.2.2 Contents of plan. A bicycle access plan shall be completed on a form provided by the department of transportation and shall include, at a minimum:

1. Provisions for at least one freight elevator to satisfy each of the following conditions:
 - 1.1. Such elevator will be made available for bicycle access for each building tenant or subtenant who requests such access, and employees thereof, during the regulating operating hours of such elevator;
 - 1.2. Bicycles will be allowed to be transported to and from such elevator along each route that is used to transport freight to and from such elevator, to the extent practicable and where such routes do not present substantial safety risks;
 - 1.3. No escort by building personnel will be required for a person transporting a bicycle to or from such elevator if no such escort is required when a person is transporting freight to or from such elevator; and
 - 1.4. A person transporting a bicycle to or from such elevator, and any package or other material in such person’s possession, shall be subject to the same or substantially similar security measures applicable to other persons entering such building or such elevator;

MISCELLANEOUS PROVISIONS

2. Provisions allowing bicycles to be brought in or out of such building using one or more designated passenger elevators that the building owner may designate as temporary freight elevators at any time when no freight elevator satisfying the conditions of item 1 is operational;
3. The location of building entrances;
4. The route to freight elevators that accommodate bicycle access;
5. The route to a designated area for bicycle parking on an accessible level if such bicycle parking is made available;
6. A notice to tenants and subtenants informing them of their responsibilities with respect to bicycle storage; and
7. Such other information as the department of transportation may require.

§28-504.1.2.3 Amendment of plan. A bicycle access plan may be amended from time to time to accommodate requests from other tenants or subtenants to provide bicycle access pursuant to this article.

§28-504.1.2.4 Limitations. If an owner of a building is issued a violation of this code or the New York city fire code, or a rule promulgated thereunder, that results from storage of a bicycle, and such owner shows that such violation occurred in an area of such building that is under the control of a tenant or subtenant, such owner may restrict or limit bicycle access under the bicycle access plan for such tenant or subtenant.

§28-504.1.3 Exceptions. Bicycle access need not be provided pursuant to this section if the commissioner of transportation grants an exception for such building under this section. Such commissioner may grant such an exception if an owner of such building applies to such commissioner for an exception, on a form provided by the department of transportation and sent to the department of transportation by certified mail, return receipt requested, within fifteen days after such owner has received a request for a bicycle access plan, and certifies that either:

1. No freight elevator in such building is available for the use described in this section because unique circumstances exist involving substantial safety risks directly related to the use of each such elevator. Such application shall include the reasons for such assertion and supporting documentation; or
2. There is sufficient secure alternate covered no-cost off-street bicycle parking or sufficient secure alternate indoor no-cost bicycle parking available on the premises or within four blocks or 1,000 feet (304.8 m), whichever is less, of such building to accommodate all tenants or subtenants of such building requesting bicycle access and that such off-street parking is accessible on a 24-hour basis. Such application shall include supporting documentation for such assertion, including proof that such alternate off-street or indoor parking is available to or under the control of such owner.

If an exception is sought pursuant to item 1 of this section, the department shall conduct an inspection of the building and each freight elevator and shall thereafter issue a final determination as to whether to grant an exception. If an exception is sought pursuant to item 2 of this section, the department, in consultation with the department of transportation, shall thereafter conduct an inspection of the secure alternate no-cost covered off-street bicycle parking, secure indoor no-cost bicycle parking and the department of transportation shall thereafter issue a final determination as to whether to grant an exception. In either event, a letter of exception or denial shall be sent by certified mail, return receipt requested, to the owner, lessee, manager or other person in control of the building. If the exception is denied, a bicycle access plan shall be posted within 20 days after receipt of such determination. Failure to timely post a bicycle access plan shall be cause for the issuance of a violation.

§28-504.1.4 Posting and availability of bicycle access plan or letter of exception. Bicycle access plans shall be posted and made available as provided in sections 28-504.1.4.1 through 28-504.1.4.3.

§28-504.1.4.1 Posting of plan. The owner of a building subject to this section shall either post in such building each bicycle access plan that is in effect, notifying the requesting tenants and subtenants of their right to bicycle access in accordance with such plan, or shall post a notice in the building lobby indicating that such plan is available in the office of the building manager upon request. Either such posting shall be made within five days after completion of such plan. Such posting or notice shall indicate the other tenants or subtenants are entitled to access according to the plan upon request, provided such tenants and subtenants, upon making such request, certify that there is sufficient space within such tenant's or subtenant's premises to store the requested

number of bicycles in a manner that does not violate the building or fire code or any other applicable law, rule or code, or which would impede ingress or egress to such premises or building.

§28-504.1.4.2 Posting of exception letter. The owner of such building shall post in such building any letter of exception granted by the commissioner or commissioner of transportation, including the basis or bases for the exception and, if applicable, the route to alternate off-street or indoor parking, as provided in section 28-504.1.3, or shall post a notice in the building lobby indicating that such letter is available in the office of the building manager upon request. Either such posting shall be made within five days after receipt of such letter of exception.

§28-504.1.4.3 Location. Plans, letters of exception or notices of availability of either shall be posted in a prominent location easily visible to a building's tenants, subtenants and the building's employees, and shall be made available upon request by the department, the department of transportation or authorized representatives of any other city agency.

§28-504.1.5 Filing of plan. The department or department of transportation may require that plans implemented pursuant to the provisions of this section be filed with either such agency.

§28-504.2 Construction. Nothing in this article shall be construed to require an owner of a building governed by this article to provide space for bicycles brought into such building or to permit a bicycle to be parked in a manner that violates building or fire codes or any other applicable law, rule or code, or which otherwise impedes ingress or egress to such building.

§28-504.3 Foldable bicycle access. It shall be unlawful for an owner of a building the main occupancy of which is offices that are classified in occupancy group B to bar a tenant or subtenant from transporting a foldable bicycle to or from such tenant or subtenants space on a passenger elevator, provided that such bicycle is fully folded. For purposes of this section, the term "foldable bicycle" means a bicycle designed to fold into a compact assembly not exceeding 20 inches (508 mm) by 36 inches (914 mm) by 32 inches (813 mm).

§28-504.4 Emergencies. In an emergency that requires an evacuation of all or part of such a building, the owner may limit or restrict bicycles and foldable bicycles from being transported through any means of egress.

§28-504.5 Bicycle access to residential buildings. In any building the main use or dominant occupancy of which is classified as occupancy group R-2 it shall be unlawful for an owner to bar a tenant or subtenant from using a passenger elevator to transport a bicycle to and from such tenant's or subtenant's dwelling unit.

Exceptions:

1. An owner may bar tenants or subtenants from utilizing passenger elevators to transport bicycles where (i) a freight elevator is provided for bicycle access to and from such tenants' or subtenants' dwelling units, provided that passenger elevators may be used during any period of time such freight elevator is not operating and (ii) there is no requirement that building personnel escort such tenants or subtenants when using the freight elevator.
2. An owner may limit bicycle access to one or more passenger elevators designated for such access.

§28-504.6 Foldable bicycles on passenger elevators in residential buildings. In any building classified in occupancy group R, it shall be unlawful for an owner to bar a tenant or subtenant from transporting a foldable bicycle on a passenger elevator provided that such bicycle is fully folded. For purposes of this section, the term "foldable bicycle" means a bicycle designed to fold into a compact assembly not exceeding 20 inches (508 mm) by 36 inches (914 mm) by 32 inches (813 mm).

ARTICLE 505 CERTIFICATION OF NO HARASSMENT PILOT PROGRAM

§28-505.1 General. The commissioner shall not approve construction documents, nor issue an initial or reinstate permit in connection therewith, for the alteration or demolition of a pilot program building identified by the department of housing preservation and development pursuant to section 27-2093.1 except as set forth in this article. Applications for post approval amendments to construction documents are subject to this article where the application proposes a change within a covered category of work as set forth in section 28-505.3.

MISCELLANEOUS PROVISIONS

§28-505.2 Definitions. As used in this article, the following terms have the following meanings:

LOW INCOME HOUSING. The term “low income housing” has the same meaning as in section 27-2093.1 of the New York city housing maintenance code.

OWNER. The term “owner” has the same meaning as in section 27-2004 of the New York city housing maintenance code.

PILOT PROGRAM BUILDING. The term “pilot program building” has the same meaning as in section 27-2093.1 of the housing maintenance code.

‡‡‡ ***§28-505.3 Covered categories of work.** Applications for the approval of construction documents for the following categories of work are covered by this article:‡

1. Demolition of all or part of the pilot program building, other than interior demolition being conducted in the course of renovation of occupied units for the purpose of repair to such units where the commissioner determines that the issuance of such permit is necessary to perform work to protect public health and safety;
2. Change of use or occupancy of all or part of a dwelling unit, any residential portion of the pilot program building, or any part of such building serving such dwelling units;
3. Any alteration resulting in the addition or removal of kitchen or bathrooms, an increase or decrease in the number of dwelling units, or any change to the layout, configuration, or location of any portion of any dwelling unit;
4. An application for a new or amended certificate of occupancy; or
5. Such other types of alteration work to a pilot program building as shall be prescribed by rule of the commissioner of housing preservation and development.

Exceptions:

1. Work solely for the purpose of either (i) making the public areas of a pilot program building accessible to persons with disabilities without altering the configuration of any dwelling unit or rooming unit or (ii) making the interior or the entrance to a dwelling unit or a rooming unit accessible to persons with disabilities shall not be covered by this article.
2. Repairs, demolition or any other work performed by a city agency or by a contractor pursuant to a contract with a city agency shall not be covered by this article.
3. Repairs, replacement, modification, or partial demolition work in a building that is the minimum required to be performed to address conditions for rescission of a vacate order issued by the department of housing preservation and development or the department.
4. Work performed on a building that has an administrator currently appointed pursuant to article seven-a of the real property actions and proceedings law shall not be covered by this article.
5. Other categories of work that are excluded from the definition of covered categories of work by rule of the department of housing preservation and development shall not be covered by this article.

**Section §28-505.3 was amended by [Local Law 140 of 2021](#). This law has an effective date of October 31, 2021.*

§28-505.4 Required submittal documents. The commissioner shall not approve any construction documents, nor issue an initial or reinstated permit in connection therewith, for a pilot program building for the covered categories of work unless the applicant provides:

1. A sworn affidavit by or on behalf of all the owners of such building that has been provided to the department of housing preservation and development, which states that there will be no harassment of the lawful occupants of such building by or on behalf of such owners during the construction period;
2. A tenant protection plan as provided for in this code; and
3. The following documents from the commissioner of housing preservation and development:
 - 3.1. A current certification of no harassment that there has been no harassment of the lawful occupants of such pilot program building within the 60 month period prior to submission of an application for such

certification to the department of housing preservation and development, provided, however, that such certification of no harassment shall except any portion of such 60 month period during which title was vested in the city;

3.2. A waiver of such certification; or

3.3. A certification that a restrictive declaration, in accordance with subdivision e of section 27-2093.1 of the housing maintenance code, has been recorded in the office of the city register or the Richmond county clerk and indexed as provided by the department of housing preservation and development.

§28-505.5 Process. Application for a certification of no harassment or waiver shall be made pursuant to section 27-2093.1 of the housing maintenance code.

§28-505.6 Time period for approval or rejection of construction documents. The time period in which the commissioner is required to approve or reject an application for construction document approval or resubmission thereof pursuant to this code shall commence from the date that the commissioner receives the documents required pursuant to item 3 of section 28-505.4.

§28-505.7 Certificate of occupancy. The department shall not issue any temporary or permanent certificate of occupancy for any new or existing structure or portion thereof on a lot subject to an restrictive declaration pursuant to subdivision e of section 27-2093.1 of the housing maintenance code, other than for any low income housing located on such lot, until the department of housing preservation and development certifies that the low income housing required by such restrictive declaration has been completed in compliance with the restrictive declaration and the department has issued a temporary or permanent certificate of occupancy for each unit of low income housing covered by such restrictive declaration.

§28-505.8 Request for stop-work or rescission. The commissioner shall be empowered to issue a stop-work notice or order with respect to an alteration or demolition permit or to rescind approval of construction documents at the request of the commissioner of housing preservation and development pursuant to section 27-2093.1 of the housing maintenance code.

***ARTICLE 506 EMISSION PROFILE OF BUILDINGS**

**Article §28-506 was added by [Local Law 154 of 2021](#). This law has an effective date of December 22, 2021.*

***§28-506.1 Prohibited Emissions in New Buildings.** New buildings shall be subject to the emissions limits set forth in section 24-177.1. The commissioner shall not approve an application for the approval of construction documents, nor issue any permit in connection therewith, for a new building that does not comply with section 24-177.1.

Exceptions:

1. A building that is seven stories or more where an application for the approval of construction documents is submitted on or before July 1, 2027.
2. A building that is less than seven stories where an application for the approval of construction documents is submitted on or before December 31, 2023.
3. A building, other than a building[‡] that is classified as group R-3, where such emissions are in connection with the provision of hot water and an application for the approval of construction documents is submitted on or before July 1, 2027.
4. A building that is less than seven stories where the building owner demonstrates in accordance with rules promulgated by the department that 50 percent or more of the dwelling units in such building are subject to a regulatory agreement, restrictive declaration, or similar instrument with a federal, state, or local governmental entity or instrumentality for the creation or preservation of affordable housing, and an application for the approval of construction documents is submitted before December 31, 2025.
5. A building that is seven stories or more where the building owner demonstrates in accordance with rules promulgated by the department that 50 percent or more of the dwelling units in such building are subject to a regulatory agreement, restrictive declaration, or similar instrument with a federal, state, or local

MISCELLANEOUS PROVISIONS

governmental entity or instrumentality for the creation or preservation of affordable housing, and an application for the approval of construction documents is submitted before December 31, 2027.

6. A building that will be primarily used by a utility regulated by the public service commission for the generation of electric power or steam.
7. A building within a facility operated by the department of environmental protection that treats sewage or food waste.
8. An application filed by or on behalf of the school construction authority submitted before December 31, 2024.
9. A building where it would not be required to comply with section 24-177.1 because the combustion of a substance that emits 25 kg or more of carbon dioxide per million British thermal units of energy is necessary for a manufacturing use or purpose, or for the operation of a laboratory, laundromat, hospital, crematorium, commercial kitchen as defined in section 602 of the New York city fire code, or where used for emergency or standby power, or other use allowed by rule of the department, to the extent necessary for, and in the space occupied by such use or purpose.

**Section §28-506.1 was added by [Local Law 154 of 2021](#). This law has an effective date of December 22, 2021.*

***ARTICLE 507 PILOT PROGRAM FOR ELIGIBLE BASEMENT AND CELLAR RESIDENCES**

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§28-507.1 Definitions.** For purposes of this article, the following terms have the following meanings:

APARTMENT. The term “apartment” has the same meaning as defined in section BC 202 of the New York city building code.

APPLICATION. The term “application” means an application for authorization for temporary residence pursuant to this article.

AUTHORIZATION FOR TEMPORARY RESIDENCE. The term “authorization for temporary” residence means an authorization issued by the department pursuant to section 28-507.4 authorizing the temporary use of an eligible basement or cellar as an apartment prior to the issuance of a certificate of occupancy or temporary certificate of occupancy for such use.

BASEMENT. The term “basement” means a story partly below the grade plane and having less than one-half of its clear height, measured from finished floor to finished ceiling, below the grade plane.

CELLAR. The term “cellar” means that portion of a building that is partly or wholly underground, and having one-half or more of its clear height, measured from finished floor to finished ceiling, below the grade plane.

ELIGIBLE BASEMENT OR CELLAR RESIDENCE. The term “eligible basement or cellar residence” means a basement or cellar in an existing dwelling within the program area, unlawfully arranged to be occupied as an apartment with acceptable kitchen and sanitation facilities as described in department rules, and which apartment was in existence prior to April 20, 2024.

FAMILY. The term “family” has the same meaning as defined in the multiple dwelling law, except that as used in this article, family shall not include any boarders, roomers, or lodgers.

PRE-EXISTING VIOLATION. The term “pre-existing violation” means a violation issued by an agency of the city of New York for the illegal occupancy of a basement or a cellar for which a notice of violation, administrative summons, criminal court summons, or other process was issued prior to the date of issuance of an authorization for temporary residence by the department pursuant to this article.

PROGRAM AREA. The term “program” area means Bronx community district 9; Bronx community district 10; Bronx community district 11; Bronx community district 12; Brooklyn community district 4; Brooklyn community district 10; Brooklyn community district 11; Brooklyn community district 17; Manhattan community district 2;

Manhattan community district 3; Manhattan community district 9; Manhattan community district 10; Manhattan community district 11; Manhattan community district 12; and Queens community district 2, and such other community districts as may be authorized pursuant to section 289 of the multiple dwelling law.

RENTED. The term “rented” means leased, let, or hired out, with or without a written agreement.

TEMPORARY RESIDENCE PROGRAM. The term “temporary residence program” means a program established pursuant to this article to facilitate the legalization of eligible basement and cellar residences within the program area and to authorize their temporary use as apartments pending the issuance of a certificate of occupancy or temporary certificate of occupancy for such use.

TENANT. The term “tenant” means an individual to whom an eligible basement or cellar residence is rented.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.2 Eligibility.** This article applies to private dwellings and multiple dwellings. The department shall establish a temporary residence program in accordance with this article. To participate in such program, an owner of an eligible basement or cellar residence shall apply for authorization for temporary residence pursuant to section 28-507.4 on or before April 20, 2029. An application for temporary residence may not be made where the eligible basement or cellar residence is located within the 10-year rainfall flood risk area or the coastal flood risk area as described in section 24-809, except as otherwise allowed pursuant to the New York city zoning resolution.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.3 Occupancy.** Notwithstanding section 27-751 of the 1968 New York city building code, section 27-2087, section 1208.2 of the New York city building code, any applicable laws in existence prior to December 6, 1968, or any provision of any other local law or the multiple dwelling law that is inconsistent with or that would frustrate the purpose of this article, the department may authorize the use of an eligible basement or cellar residence within the program area as an apartment in accordance with this article.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.4 Authorization for temporary residence.** The department may issue an authorization for temporary residence for the use of an eligible basement or cellar residence in the program area as an apartment prior to the issuance of a certificate of occupancy or temporary certificate of occupancy in accordance with this section. The owner of an eligible basement or cellar residence may submit an application for an authorization for temporary residence to the department in a form and manner determined by the department. An application for an authorization for temporary residence may not be used as the basis for an enforcement action for illegal occupancy of such residence, provided that nothing in this article shall be construed to prevent the issuance of a vacate order for an imminently hazardous or otherwise unsafe condition.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.4.1 Issuance of authorization for temporary residence.** The department may issue an authorization for temporary residence upon determining that:

1. The basement or cellar referenced in such application is an eligible basement or cellar residence;
2. Such eligible basement or cellar residence contains an apartment that was in existence prior to April 20, 2024; and
3. Such eligible basement or cellar residence has been inspected, and:
 - 3.1 Would not pose an imminent risk to the life or safety of occupants;
 - 3.2 Contains a battery-operated or hard-wired smoke detector and carbon monoxide detector;
 - 3.3 Contains at least 1 means of egress directly to the outdoors in accordance with the construction standards of chapter 10 of the New York city building code, including access to a public way. Such means of egress shall be an exterior door that swings inward and is provided with landings on both the interior and exterior sides in accordance with section 1010.1.6 of the New York city building code; and

MISCELLANEOUS PROVISIONS

3.4 Has a minimum clear ceiling height in accordance with section 202.5 of appendix U of the New York city building code.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.4.2 Rulemaking.** The department, in consultation with the fire department and the office of emergency management, shall adopt rules governing the occupancy and use, prior to the issuance of a certificate of occupancy or temporary certificate of occupancy, of eligible basement and cellar residences that have been issued an authorization for temporary residence, including minimum housing maintenance standards. Such rules shall:

1. Require occupancy of an eligible basement or cellar residence by not more than 1 family maintaining a common household;
2. Prohibit an owner or occupant from renting or offering to rent such eligible basement or cellar residence for less than 30 consecutive days; and
3. Prohibit registration of such residence for short-term rental pursuant to chapter 31 of title 26.

Except as otherwise provided in such rules, the provisions of chapter 2 of title 27 shall not apply to such eligible basement and cellar residences.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.4.3 Vacate orders.** The department, the department of housing preservation and development, or the fire department may stay an order to vacate an eligible basement or cellar residence once an owner has applied for authorization for temporary residence or at any time following the issuance of an authorization for temporary residence.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.4.4 Expiration of authorization for temporary residence.** An authorization for temporary residence expires 10 years after the date of its issuance. Prior to such expiration date, the owner must obtain a certificate of occupancy or temporary certificate of occupancy for such residence in accordance with section 28-507.6. An owner must comply with the conditions set forth in section 28-507.4.5 during such 10-year period. The issuance of an authorization for temporary residence allows occupancy of the eligible basement or cellar residence prior to the issuance of a certificate of occupancy or temporary certificate of occupancy.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.4.5 Requirements for maintaining an authorization for temporary residence.** An authorization for temporary residence shall be subject to the requirements set out in sections 28-507.4.5.1, 28-507.4.5.2, and 28-507.4.5.3

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.4.5.1 Requirements within 3 months.** Not later than 3 months following the date such authorization is issued, the owner must submit documentation in a form and manner determined by the department establishing that:

1. Such eligible basement or cellar residence has smoke and carbon monoxide alarms in accordance with sections U103.6.2 and U103.6.3 of appendix U of the New York city building code;
2. Such eligible basement or cellar residence has water sensors and alarms in accordance with section U202.11 of appendix U of the New York city building code;
3. Such eligible basement or cellar residence has the required signage posted in a manner prescribed by chapter 2 of title 27 and the rules of the department of housing preservation and development; and
4. The owner has notified any tenants in such eligible basement or cellar residence about enrollment in an emergency alert system operated by the office of emergency management.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.4.5.2 Authorization requirements within 1 year.** Not later than 1 year following the date such authorization is issued, the owner must submit documentation in a form and manner determined by the department establishing that such eligible basement or cellar residence:

1. Complies with the fire separation standards set forth in section U202.7 of appendix U of the New York city building code; and
2. Is tested and meets the standard set forth in rules promulgated by the department of health and mental hygiene in consultation with the mayor's office of environmental remediation, in accordance with sections U202.9 and U202.10 of appendix U of the New York city building code.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.4.5.3 Authorization requirements within 2 years.** Not later than 2 years following the date such authorization is issued, the owner must submit documentation in a form and manner determined by the department establishing that such eligible basement or cellar residence has an automatic sprinkler system in accordance with section U103.6.1 of Appendix U of the New York city building code and section 28-507.9, provided, however, that notwithstanding any provision of this article or the multiple dwelling law, in no case shall the addition of an eligible basement or cellar residence require the installation of an automatic sprinkler outside of the eligible basement or cellar residence, or outside of the means of egress from such residence.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.4.6 Additional safety or construction requirements.** An eligible basement or cellar residence must be in compliance with any additional safety or construction requirements established pursuant to rules promulgated by the department in consultation with the fire department and the office of emergency management.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.5 Deferral or waiver of penalties by the department.** Payment of any civil penalties for violations issued by the department that would otherwise be required to be paid by an owner of an eligible basement or cellar residence before the issuance of a permit for alterations to comply with section 28-507.4 may be deferred, and upon issuance of a certificate of occupancy or temporary certificate of occupancy in accordance with section 28-507.6, such deferred amounts may be waived. Notwithstanding the preceding sentence, deferred amounts shall continue to be due and owing to the department. Where an owner fails to comply with the requirements of this article, deferred amounts shall no longer be deferred and payment may be enforced in accordance with this code.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.6 Certificates of occupancy pursuant to this article.** Notwithstanding any inconsistent provision of the multiple dwelling law, article 118 of chapter 1, or of any other law, where an eligible basement or cellar residence in a one- or two-family home has been issued an authorization for temporary residence in accordance with section 28-507.4, the department may issue a certificate of occupancy pursuant to the article as follows:

1. For a building erected prior to January 1, 1938 that does not have and is not otherwise required to have a certificate of occupancy, issue a partial certificate of occupancy limited to the new or altered apartment in the basement of a building or the new apartment in the cellar of a building.
2. For a building with an existing certificate of occupancy, issue an amended certificate of occupancy limited to the new or altered apartment in the basement of such building or the new apartment in the cellar of such building.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.6.1 Issuance of an amended or partial certificate of occupancy.** A partial or amended certificate of occupancy shall be issued subject to the following conditions:

1. Upon inspection, the apartment being created or altered (i) conforms substantially to the approved construction documents, complies with this code and other applicable laws, except as specifically provided in this article, and is safe for occupancy, or (ii) the department upon an inspection certifies that waiver of otherwise applicable requirements is appropriate because such apartment provides for the health and safety of all occupants of such dwelling by alternative means that are no less stringent than the requirements of

MISCELLANEOUS PROVISIONS

this article.

2. Upon inspection, the required means of egress from all floors of the building comply with this code and other applicable laws.

3. A partial or amended certificate of occupancy or a temporary certificate of occupancy may be issued where there are open pre-existing violations in the building. All such open violations, including those specified in the exceptions below, shall remain administratively open and the department may thereafter continue to enforce against such violations until, in accordance with applicable provisions of this code, outstanding penalties are paid and, if applicable, certificates of correction are approved by the department.

Exceptions:

1. Where a pre-existing violation in parts of the building outside of the new or altered apartment is classified as “immediately hazardous,” the condition that gave rise to the issuance of such immediately hazardous violation must be removed or remedied in accordance with the New York city construction codes and to the satisfaction of the commissioner of buildings, and evidence of such removal or remediation in the form of plans, drawings, photos, affidavits, or a combination thereof, with the signature and seal of a registered design professional or, if applicable, a licensee of the department in the applicable trade, must be submitted to the department prior to the issuance of such amended or partial certificate of occupancy or a temporary certificate of occupancy.

2. Any condition that gave rise to a pre-existing violation in the new or altered apartment must be removed or remedied by work performed under permits issued pursuant to this article.

3. Notwithstanding any inconsistent provision of this code, including sections 28-118.14 and 28-219.1, a certificate of occupancy or a temporary certificate of occupancy may be issued for a basement or cellar apartment created or altered pursuant to this article where there are outstanding fines and civil penalties for pre-existing violations, provided that such fines and civil penalties may remain due and owing, and the department may thereafter enforce and collect such amounts in accordance with this code, unless such department determines that such fines and civil penalties should be waived in the interest of the program. When determining whether to waive such fines and civil penalties, the department may consider factors including the number and pecuniary amount of fines and civil penalties owed, the financial need of the owner, and the likely effect of such fines and civil penalties on compliance with this code.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.6.2 Refusal to issue a certificate of occupancy or temporary certificate of occupancy.** The department may refuse to issue a certificate of occupancy or a temporary certificate of occupancy pursuant to this section if there are outstanding violations issued by the department, penalties or open permits not signed off related for work performed under permits issued pursuant to this article until such penalties have been paid, such violations have been corrected, including filing certificates of correction, if applicable, and permits have been closed, as required by this code.

§ 28-507.6.3 Certificates of occupancy to reference this article. Every certificate of occupancy or temporary certificate of occupancy issued for a basement or cellar apartment in a one- or two-family home created or altered pursuant to this article must contain a reference to this article. A partial or amended certificate of occupancy or a temporary certificate of occupancy issued pursuant to section 28-507.6 must contain a note that such certificate of occupancy does not certify compliance with applicable laws with respect to parts of the building outside of the apartment created or altered pursuant to this article.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.6.4 Certificate of occupancy for one- or two-family home.** Where a basement or cellar in a one- or two-family home has been issued an authorization for temporary residence in accordance with section 28-507.4, the department shall issue a certificate of occupancy, temporary certificate of occupancy, partial certificate of occupancy, or amended certificate of occupancy for such dwelling in accordance with the requirements of appendix U of the New York city building code.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.6.5 Certificate of occupancy for a multiple dwelling.** Except as may be provided in the rules of the department, in consultation with the fire department, the office of emergency management, the department of housing preservation and development, the department environmental protection, and the department health and mental hygiene, where a basement or cellar in a multiple dwelling has been issued an authorization for temporary residence in accordance with section 28-507.4, the department shall issue a certificate of occupancy, temporary certificate of occupancy, or amended certificate of occupancy for such dwelling in accordance with the requirements of this code for Group R-2 occupancy.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.7 Waiver of application, permit, and inspection fees by the department.** The commissioner shall waive all fees, which would otherwise be required to be paid to the department by this title, the New York city electrical code, or the rules of the department, in connection with applications, permits, and inspections for work in the program area related to the creation or alteration of habitable apartments in basements and cellars where such apartments are officially subsidized under the program administered by the department of housing preservation and development pursuant to section 28-507.12.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.8 Waiver of fees by other agencies.** The department of environmental protection shall waive all fees which would otherwise be required to be paid to such department arising out of the creation or alteration of habitable apartments in basements and cellars where such apartments are officially subsidized under the program administered by the department of housing preservation and development pursuant to section 28-507.12. Any other agency may promulgate rules to waive fees that would otherwise be required to be paid arising out of the creation or alteration of such apartments where such apartments are officially subsidized under the program administered by the department of housing preservation and development pursuant to section 28-507.12, and where such agency determines that such waiver would facilitate such program.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.9 Compliance with fire code sprinkler requirements for altered buildings on substandard width streets.** Any habitable apartment in a basement or cellar created or altered pursuant to section 28-507.3 shall be deemed to be an alteration subject to exception 5.1 of section 501.4.3.1 of the New York city fire code.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.10 Construction.** Except as specifically provided in this article, nothing in this article is intended to grant authorization for any work to be done in any manner in violation of the provisions of this code, or any other law or rule.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.11 Enforcement and revocation.** The provisions of this article shall be enforced in accordance with section 28-507.11.1, 28-507.11.2, and 28-507.11.3.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.11.1 Violations.** Violations of this article and rules of the department promulgated pursuant to this article shall be subject to enforcement and penalties in accordance with chapter 2 of this title. Notices of violation, administrative summonses, and appearance tickets may be issued by employees of the department or the fire department.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.11.2 Inspections and revocation.** The department and the fire department may inspect eligible basement or cellar residence participating in the program authorized by this article in accordance with applicable law. The department may, after notice and opportunity to be heard, revoke an authorization for temporary residence where 3 or more violations of this article or rules of the department promulgated pursuant to this article have been committed within a 1 year period, or where any violation of section 28-507.4 has been committed.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

MISCELLANEOUS PROVISIONS

***§ 28-507.11.3 Reinstatement of prior actions upon expiration or revocation.** Where an authorization for temporary residences expires or is revoked before a certificate of occupancy or temporary certificate of occupancy is issued for an eligible basement or cellar residence, the department, the department of housing preservation and development, or the fire department may, as applicable, take any of the following actions:

1. Issue a vacate order if the basement or cellar is occupied.
2. Reinstate any prosecution for illegal occupancy that was deferred or waived pursuant to this article.
3. Reinstate and commence collection of any penalties that were deferred or waived pursuant to sections 28-507.5 or 28-507.6, including interest that would have accrued from the time of such deferral or waiver.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.12 Technical assistance and outreach.** The department of housing preservation and development shall establish a program to provide technical assistance to owners of eligible basement or cellar residences that are contained within one-family or two-family homes and conduct public education and outreach to owners of dwellings such department determines are likely to include eligible conversions.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.13 Tenant protections.** Protections for a tenant of an eligible basement or cellar residence shall be in accordance with sections 28-507.13.1, 28-507.13.2, and 28-507.13.3.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.13.1 Certification of rental status as of April 20, 2024.** An application for authorization for temporary residence pursuant to section 28-507.4 must be accompanied by a certification from the owner of an eligible basement or cellar residence indicating whether such residence was rented to a tenant on April 20, 2024, notwithstanding whether the occupancy of such residence was authorized by law. Such certification may not be used as the basis for an enforcement action for the illegal occupancy of such unit, provided however that nothing in this article shall prevent the issuance of a vacate order for imminently hazardous or unsafe conditions.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.13.2 Tenant right of first return.** A tenant in occupancy of an inhabited eligible basement or cellar residence on April 20, 2024 who is evicted or otherwise removed from such residence as a result of an alteration necessary to bring such residence into compliance with the standards set out in this article shall have a right of first refusal to return to such unit as a tenant upon its first occupancy following such alteration, notwithstanding whether such occupancy on April 20, 2024 was authorized by law, subject to rules established by the department of housing preservation and development.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.13.3 Tenant cause of action.** A tenant unlawfully denied a right of first refusal to return to an eligible basement or cellar residence pursuant to this article shall have a cause of action in any court of competent jurisdiction for compensatory damages or declaratory and injunctive relief as the court deems necessary in the interests of justice, provided that such compensatory relief shall not exceed the annual rental charges for such eligible basement or cellar residence.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*

***§ 28-507.14 Application deadline.** To participate in the temporary residence program, the owner of an eligible basement or cellar residence must apply for authorization for temporary residence pursuant to section 28-507.4 not later than April 20, 2029.

**Article §28-507 was added by [Local Law 126 of 2024](#). This law has an effective date of June 16, 2025.*